

Ministry of Electronics and Information Technology, Section Officer, Limited Departmental Competitive Examination Rules, 2018

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Ministry of Electronics and Information Technology, Section Officer, Limited Departmental Competitive Examination Rules, 2018

Rule

MINISTRY-OF-ELECTRONICS-AND-INFORMATION-TECHNOLOGY-SECTION-OFFICER-LIMITED-DEPARTMENTAL-COMPETITIVE-EXAMINATION-RULES-2018 of 2018

Published on 8 February 2019

Commenced on 8 February 2019

[This is the version of this document from 8 February 2019.]

[Note: The original publication document is not available and this content could not be verified.]

Ministry of Electronics and Information Technology, Section Officer, Limited Departmental Competitive Examination Rules, 2018

Published vide Notification No. G.S.R. 110(E), dated 8.2.2019

Last Updated 18th February, 2019

G.S.R. 110(E). - In exercise of the powers conferred by the proviso to article 309 of the Constitution and in supersession

of the Ministry of Information Technology, Section Officer Departmental Competitive Examination Rules, 2000, except as respects things done or omitted to be done before such supersession, the President hereby makes the following rules regulating the Limited Departmental Competitive Examination for promotion to the post of Section Officer in the Ministry of Electronics and Information Technology, namely: -

1.

Short title and commencement.

(1)

These rules may be called the Ministry of Electronics and Information Technology, Section Officer, Limited Departmental Competitive Examination Rules, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

- In these rules unless the context otherwise requires, -

(a)

"appointing authority" means the Secretary to the Government of India, Ministry of Electronics and Information Technology;

(b)

"available vacancy" means a vacancy in the post of Section Officer's grade in the Ministry of Electronics and Information Technology which is required to be filled up on the basis of the results of the examination;

(c)

"crucial date" means the first day of January of the year of the vacancies for which such examination is held;

(d)

"examination" means the limited Departmental Competitive Examination for promotion to the post of Section Officer held in the manner specified in the Schedule;

(e)

"recruitment year" means the period commencing from the 1st day of January and ending on the 31st day of December of the same year;

(f)

"Schedule" means the Schedule annexed to these rules;

(g)

"Scheduled Castes" and "Scheduled Tribes" shall have the same meanings respectively as assigned to them in clauses (24) and (25) of article 366 of the Constitution.

3.

Conditions of eligibility.

(1)

Assistant Section Officer and Personal Assistant in level 7 in the pay matrix (Rs. 44900-142400) in the Ministry of Electronics and Information Technology who have rendered not less than five years approved service which should include at least four years regular and continuous service in that level in the pay matrix and Security Supervisor in level 6 in the pay matrix (Rs. 35400-112400) in the Ministry of Electronics and Information Technology who have rendered not less than seven years approved service which should include at least six years regular and continuous service in that level in the pay matrix and have successfully completed probation period and possessing a Bachelor's Degree from a recognised university or equivalent on the crucial date shall be eligible to appear in the Limited Departmental Competitive Examination.

(2)

The eligibility shall continue to be the same for persons holding the feeder posts on regular basis on the date of notification of the revised rules.

Note 1. - The approved service rendered in the grade, on the 1st day of the recruitment year, as the residency period will be counted for promotion.

Note 2. - For the purposes of this rule, the period of 'approved service' shall be calculated in the following manner, namely: -

(i)

in respect of an officer recruited directly to that grade, period or periods of regular service rendered in that grade, including period or periods of absence during which he would have held a post on regular basis in that grade but for his being on leave or otherwise not being available to hold such post, from the first day of the recruitment year, following the year in which the examination for direct recruitment was held;

(ii)

in respect of an officer recruited to that grade through departmental examination, period or periods of regular service rendered in that grade, including period or periods of absence during which he would have held a post on regular basis in that grade but for his being on leave or otherwise not being available to hold such post, from the first day of the recruitment year for vacancies of which such examination was held;

(iii)

in respect of an officer recruited to that grade on the basis of length of service in the lower grade, period or periods of regular service rendered in that grade, including period or periods of absence during which he would have held a post on regular basis in that grade but for his being on leave or otherwise not being available to hold such post, from the first day of the recruitment year for which the recruitment was made:

Provided that where there is delay of more than ninety days in joining on appointment, in any of the cases mentioned in the sub-clauses (i), (ii) and (iii) above, such delay should not be due to any fault on the part of the officer.

Note 3. - Where juniors who have completed their qualifying or eligibility service are being considered for promotion, their seniors would also be considered provided they are not short of the requisite qualifying or eligibility service by more than half of such qualifying or eligibility service or two years, whichever is less, and have successfully completed probation period for promotion to the next higher grade along with their juniors who have already completed such qualifying or eligibility service.

4.

Holding of the examination.

(1)

The appointing authority shall notify the dates and place of the examination and number of available and anticipated vacancies assessed at the time of announcing the examination.

(2)

The examination shall be conducted after the expiry of at least thirty days from the date of notifying the vacancies in the manner specified in the Schedule which may be held before the 31st March of the recruitment year.

(3)

The number of vacancies reserved for the Scheduled Castes, the Scheduled Tribes and other special categories of person, if any, shall be clearly indicated in the notification.

5.

Results.

(1)

On the basis of the aggregate marks secured by the candidate in Part I and II of the examination, a merit list containing the names of the successful candidates in order of merit shall be notified, keeping in view the number of vacancies and anticipated vacancies, if any, falling in the recruitment year.

(2)

The standards of evaluation for candidates belonging to the Scheduled Castes and the Scheduled Tribes shall be as per the Government instructions from time to time.

(3)

The candidates for appointment against the available vacancies shall be considered in the order in which their names appear in the merit list prepared under sub-rule (1).

(4)

The merit list shall remain in operation till the notified vacancies are filled up or upto a period of 18 months from the date of its approval by the appointing authority or till next merit list is approved by the appointing authority, whichever is earlier.

6.

Appointment.

- The inclusion of the name of any candidate in the merit list shall not confer a right to appointment and he shall be appointed by the Appointing Authority only after satisfying itself that no vigilance or disciplinary case is either pending or contemplated against the candidate and after taking into account his placement in the merit list, the reservation of posts or such other requirements as may be laid down by statutory orders or rules issued by the Central Government, from time to time, in this regard.

7.

Removal of name from merit list on resignation, etc.

(1)

In case a candidate after appearing at the examination resigns from the service or whose services are terminated or who is appointed to an ex-cadre post or to any other service and does not have a lien on any post mentioned in rule 3, his name shall not be included in the merit list, or if included in the said merit list shall be struck off therefrom.

(2)

Where a candidate, whose name is included in the said merit list, is appointed to an ex-cadre post or is transferred to another Department of the Central Government with the permission of the appointing authority and continue to have a lien on any post mentioned in rules 3, shall not be appointed as Section Officer till he resumes the duties in the Ministry of Electronics and Information Technology on his initial post during the period the merit list remains in force:

Provided that his claim for proforma promotion may be considered by the appointing authority in accordance with the orders and rules of the Central Government, issued in this behalf from time to time.

8.

Penalty for impersonation or other misconduct.

- A candidate, who is or has been declared by the appointing authority to be guilty of -

(i)

obtaining support for his candidature by any means; or

(ii)

impersonation; or

(iii)

procuring impersonation by any person; or

(iv)

submitting fabricated documents or documents which have been tampered with; or

(v)

making statements which are incorrect or false or suppressing material information; or

(vi)

resorting to any other irregular or improper means in connection with his candidature for the examination; or

(vii)

using unfair means in the examination hall; or

(viii)

misbehaving in the examination hall; or

(ix)

attempting to commit or, as the case may be, abetting the Ministry of all or any of the acts specified in clauses (i) to (viii); may, in addition to the criminal proceedings, liable -

(a)

to be disqualified by the appointing authority from the examination; or

(b)

to disciplinary action, under the appropriate rules:

Provided that no penalty under this rule shall be imposed except after -

(i)

giving the candidate an opportunity of making such representation in writing as he may wish to make in that behalf; and

(ii)

taking the representation, if any submitted by the candidate within the period allowed to him, into consideration.

9.

Power to relax.

- Where the Central Government is of the opinion that it is necessary or expedient to do so, it may, by order and for reasons to be recorded in writing, relax any of the provisions of these rules with respect to any class or category of persons.

Schedule

(See rule 4)

The examination shall be conducted in the following two parts, namely: -

Part I ? 1. Written examination shall carry a maximum of 500 marks. The subject of the written examination, the maximum marks allotted to each paper and the time limit allowed shall be as follows, namely: -

Paper No.

Subject

Type of Paper

Maximum Marks

Time

I

Noting and Drafting, Precis Writing

Descriptive

200

3 hours

II

Procedure and Practice in the Government of India Secretariat and Attached Offices and General Financial and Service Rules duly taking into account the requirement of relevant categories of services. The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 and e-office.

Objective

150

2 hours

III

General Studies and General Knowledge of Constitution of India and Machinery of Government, Practice and Procedure in Parliament and the Right to Information Act, 2005.

Objective

150

2 Hours

2. Syllabus for examination:

A. Paper-I

Candidates are required to prepare notes and drafts on specific problems and precis from a passage.

B. Paper-II

The paper is intended to be intensive and detailed test in methods and procedure of work in the Government of India Secretariat and attached offices. Detailed knowledge of General Financial and Service Rules viz., Conduct Rules, Leave Rules, Travelling Allowance Rules etc. will be tested. The following Reference Books (which are however not exhaustive) are recommended: -

(i)

Manual of office procedure;

(ii)

Notes on office procedure issued by the Institute of Secretarial Training and Management;

(iii)

Handbook of orders regarding use of Hindi for official purpose of the Union issued by the Personnel and Training, Administrative Reforms and Public Grievances and Pension Ministry;

(iv)

Fundamental and Supplementary Rules;

(v)

The Central Civil Services (Pension) Rules, 1972;

(vi)

The Central Civil Services (Conduct) Rules, 1964;

(vii)

The Central Civil Services (Classification, Control and Appeal) Rules, 1965;

(viii)

Central Civil Services (Leave) Rules, 1972;

(ix)

Compilation of the General Financial Rules, 1963 (Revised and Enlarged);

(x)

Delegation of Financial Power Rules, 1978;

(xi)

The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013; and

(xii)

e-office.

C. Paper-III

This paper will cover subject of interest and importance in the present day. Questions will be set to test knowledge of broad salient features of the Government Planning, Indian Economy and major Development Schemes as also intelligence awareness of current affairs both national and international.

A broad knowledge of the following aspects will also be expected:

(i)

The principles of the Constitution of India;

(ii)

Rules of Procedure and Conduct of Business in the Lok Sabha and Rajya Sabha;

(iii)

The organization of the machinery of Government of India - designation and allocation of subjects between Ministries, Departments, and attached or subordinate offices and their relation inter-se; and

(iv)

The Right to Information Act, 2005.

3. Penalty for wrong answers (in Objective Type Papers). - There will be penalty (Negative Marking) for wrong answers marked by a candidate in the objective question papers as under -

(i)

There will be four alternatives for the answer to every question and for each question for which a wrong answer has been given by the candidate, one-fourth (0.25) of the marks assigned to that question will be deducted as penalty;

(ii)

If a candidate gives more than one answer, it will be treated as a wrong answer even if one of the given answers happens to be correct and there will be same penalty as above for that question;

(iii)

If a question is left blank, i.e. no answer is given by the candidate, there will be no penalty for that question.

4. Candidates are allowed the option to answer the Noting and Drafting, Precis Writing paper either in Hindi (Devanagari) or in English. All the three question papers or test booklets will be set both in Hindi and English.

Note 1. - Candidates desirous of exercising the option to answer the Noting and Drafting, Precis Writing paper in Hindi (Devnagari) should indicate their intention to do so in the application form otherwise it would be assumed that they would answer the aforesaid paper in English. The option once exercised shall be treated as final and no request for change shall be entertained later on. No credit shall be given for examination taken in a language other than the one opted for by the candidate.

Note 2. - Candidates exercising the option to answer the paper in Hindi (Devanagari) may, if they so desire, give English version within brackets of the description of the technical terms, if any, in addition to the Hindi version.

Note 3. - If a medium other than the one indicated by the candidate in the application form is used to write the answer in

the examination, the paper of such candidates will not be evaluated.

5. The minimum qualifying marks in each of the three subjects in Part I should be thirty-five per cent and aggregate marks should be forty-five per cent.

6. Marks will not be allotted for mere superficial knowledge.

7. Deduction upto five per cent. of the maximum marks in the descriptive paper will be made for illegible handwriting.

8. Credit will be given for neat and methodical expression of ideas with due economy of words, in the descriptive paper.

9. The decision of the Central Government with regard to the acceptance of the application of a candidate and his/her eligibility or otherwise for admission to the examination shall be final.

10.

Appearance of candidates in all the three papers is a must for qualifying the examination. The Ministry has the discretion to fix minimum qualifying marks in any or all the subjects of the examination.

11.

Candidates should use only international form of Indian numerals (e.g. 1,2,3,4,5,6 etc.) while answering paper-I.

Part II ? 1. Assessment of Annual Performance Appraisal Reports: -

(a)

This part shall carry a maximum of 100 marks.

(b)

The Annual Performance Appraisal Reports of the candidates shall be scrutinised for the service period reckoned for promotion and marks will be accordingly allotted by the Departmental Promotion Committee.

(c)

The minimum qualifying marks in the Annual Performance Appraisal Reports of each year during the residency period will not be lower than the benchmark prescribed for promotion to the post of Section Officer.

2. The Departmental Promotion Committee referred to in sub-paragraph (b) of paragraph 1 shall consist of the following persons, namely: -

(1)

Additional Secretary (Personnel) or Joint
Secretary (Personnel), Ministry of Electronics and Information
Technology

- Chairman;

(2)

Joint Director, Ministry of Electronics and
Information Technology

- Member;

(3)

One Deputy Secretary or equivalent to the
Government of India from Ministry or Department or Organisation
other than the Ministry of Electronics and Information Technology

- Member.

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